

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 02/18/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: MSC21-01215 CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH HEARING ON ORDER TO SHOW CAUSE IN RE: RE DISMISSAL FOR FAILURE TO APPEAR BY PLAINTIFF'S COUNSEL DAWN M. SMITH AT THE 12/19/25 CMC AND TRIAL SETTING CONFERENCE. FILED BY:

TENTATIVE RULING:

Upon review of the Declaration of Counsel Dawn M. Smith filed on December 22, 2025, the Court finds good cause to discharge the Order to Show Cause. This Order to Show Cause re dismissal is discharged.
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2. 9:00 AM CASE NUMBER: C24-01992
CASE NAME: DOROTHY CAMON VS. CALIFORNIA STATEWIDE COMMUNITIES DEVELOPMENT
AUTHORITY
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Defendant California Statewide Communities Development Authority ("CSCDA") demurs to the First Amended Complaint by plaintiff, Dorothy Fay Camon. Plaintiff has filed an opposition. The demurrer is **sustained with leave to amend**. In amending, plaintiff shall list the defendants against whom each cause of action is being asserted, for clarity.

Any amended complaint shall be filed on or before March 2, 2026.

I. Factual and Procedural Background

Plaintiff is an elderly homeowner in Contra Costa County who alleges that she was the victim of a network of entities participating in California's Property Assessed Clean Energy ("PACE") home improvement financing program. She alleges fraudulent misrepresentations on the part of a contractor and salesperson, Shai Barak, who pushed various home improvement work under the PACE program. Among the allegations are that her electronic signature was forged, she was sold products that she should not have been sold, and that the work was defective and went unfinished.

The action targets multiple defendants, including defendant CSCDA, a public agency. (First Amended Complaint, "FAC," ¶16.) CSCDA implements assessments against the property of homeowners participating in the PACE program. (*Ibid.*) CSCDA "contracted with Contra Costa County and agreed to take responsibility for disputes related to PACE assessment liens and related levy responsibilities." CSCDA "partnered" with defendant Pace Funding Group, LLC to "solicit" property owners like plaintiff. (FAC, ¶17.)

Plaintiff filed this action on July 29, 2024, alleging causes of action for (1) Fraud – Intentional Misrepresentation, (2) Fraud – Concealment, (3) Negligent Misrepresentation, (4) Rescission, (5) Financial Elder Abuse, (6) Unfair Competition, and (7) Injunctive Relief Under Consumer Legal Remedies Act (Civil Code § 1750 *et seq.*). After a demurrer by defendants Citywide Roofing and PACE Funding Group, LLC, was sustained, plaintiff filed the FAC. The FAC continues to allege the same causes of action. Both Citywide Roofing and PACE Funding Group answered. CSCDA filed this demurrer after efforts to meet and confer.

II. Meet and Confer Efforts

According to the Declaration of Ryan A. Drossel, CSCDA "raised the issues in the foregoing motion with opposing counsel on September 18, 2025," but the parties were "unable to informally resolve the matters presented."

Code of Civil Procedure section 430.41, subdivision (a) states that, before filing a demurrer, "the demurring party shall meet and confer *in person, by telephone, or by video conference* with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." Following such efforts, a declaration filed in support of the demurrer must state "[t]he means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer." (Code

Civ. Proc., § 430.41 (a)(3)(A).)

CSCDA fails to indicate how parties met and conferred (in person, by telephone, or by video conference). However, failure to strictly comply with the meet and confer statute is not a permissible basis for either sustaining or overruling a demurrer. Given the improbability that meeting and conferring in the correct format would change the results here (assuming such meet and confer was not already in the correct format), the Court proceeds with its ruling.

CSCDA generally demurs, arguing plaintiff fails to state sufficient facts to constitute a cause of action against CSCDA. (See Code of Civil Procedure § 430.10 (e).)

III. Standard

The limited role of a demurrer is to test the legal sufficiency of a complaint. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A complaint will be upheld if it provides the defendant with "notice of the issues sufficient to enable preparation of a defense." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) The grounds for a demurrer must appear on the face of the challenged pleading, or from matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).) In evaluating the sufficiency of the challenged pleading, all material facts properly pleaded are treated as true, but not contentions, deductions, or conclusions of fact or law. (*Moore v. Conliffe* (1994) 7 Cal.4th 634, 638, citing *Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

IV. Evidentiary Matters

Plaintiff requests judicial notice of various documents. The Court **grants** the request with respect to the FAC and the attached roster of public agencies and the CSCDA's respective omission from the roster. The request is otherwise **denied**. There is no reference to these materials in the Memorandum of Points and Authorities in Support of the Opposition, nor are they attached to the RJN.

V. Discussion

A. Government Claim Presentation Requirements

Defendant argues that none of the causes of action can be brought against it because plaintiff fails to allege that she complied with Government Claim presentation requirements. Plaintiff responds that CSCDA is not a public entity because it did not comply with its obligations to register with the Secretary of State. Plaintiff cites Government Code, § 946.4, which provides, in relevant part:

(a) Where provision is made by or pursuant to law that no suit may be brought against a public agency as defined in Section 53050 unless and until a claim is presented to the agency, the failure to present a claim does not constitute a bar or defense to the maintenance of a suit against the public agency if, during the 70 days immediately following the accrual of the cause of action, either of the following apply:

(1) No statement pertaining to the public agency is on file, or is placed on file, in the Registry of Public Agencies in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an office, as required by Section 53051.

(2) A statement or amended statement pertaining to the public agency is on file, or is placed on file, in the Registry of Public Agencies in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an

office, but the information contained therein is so inaccurate or incomplete that it does not substantially conform to the requirements of Section 53051.

(b) On any question of fact arising within the scope of paragraphs (1) and (2) of subdivision (a), the burden of proof is upon the public agency.

In its reply, CSCDA generally avoids this point about its failure to register, instead arguing plaintiff must specifically plead facts constituting an excuse to comply with presentation requirements. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

The Court disagrees with plaintiff's argument that CSCDA is not a public entity. Plaintiff conceded this point by alleging in paragraph six of the FAC that CSCDA "is an entity created under the Joint Exercise of Powers Act, and is considered a 'public agency.'"

Still, controlling cases cited by plaintiff and ignored by CSCDA, hold that, at a minimum, a plaintiff must be allowed to amend the complaint to allege the defendant's failure to register as an excuse for plaintiff not presenting a claim. In *Wilson v. San Francisco Redevelopment Agency*, the California Supreme Court reversed a trial court order and required the demurrer to be overruled. The plaintiff there failed to comply with presentation requirements, but was excused where the demurring defendant had failed to file information with the Secretary of State to be placed on the roster of public agencies (now called the "Registry of Public Agencies"). (*Wilson v. San Francisco Redevelopment Agency* (1977) 19 Cal.3d 555, 560 ["a fair reading of the sections in question suggests that the agency's failure to comply with section 53051 entitles the claimant to ignore the claim-filing requirement entirely"].)

In a more recent decision, *Black v. Los Angeles County Metropolitan Transportation Authority* (2025) 116 Cal.App.5th 677, the Second District Court of Appeals held that the trial court abused its discretion in sustaining a demurrer without leave to amend by Public Transportation Services Corporation, where plaintiff opposed the demurrer on the basis that defendant (an organizational unit of the LA County Metropolitan Transportation Authority) had failed to comply with the registration requirements of Government Code, § 53051.

The purpose of the statutes requiring a public agency roster to be maintained is "to provide reliable information about local public agencies and thus facilitate service of process on them." Accordingly, relieving plaintiffs of claims presentation requirements is incentive for public entities to comply with registration requirements. (*Wilson, supra*, 19 Cal.3d at 561-562.)

Defendant separately argues that any potential government claim by plaintiff against CSCDA would be time-barred. (Memorandum of Points and Authorities, 17:4-18.) This argument lacks merit as it is derivative of claim presentation being required in the first place. *Wilson* rejected the timing argument by pointing out that, given the purposes of the public roster (now referred to as a "registry"), "defendant's noncompliance with section 53051 might well have contributed to plaintiff's delay in filing." (*Id.* at 562.)

The demurrer is sustained on this basis that plaintiff fails to address claim filing whatsoever, but plaintiff has leave to amend to add her allegations concerning excuse based on lack of registration by CSCDA.

B. Facts Establishing CSCDA's Liability / Sovereign Immunity Bars Plaintiffs' Claims (All C/A)

CSCDA correctly argues the FAC contains no citations to a statutory basis, and insufficient facts, to establish its liability for plaintiff's harm. The California Supreme Court has summarized how

public entity liability may or may not be established:

Under the Government Claims Act (Gov. Code, § 810 et seq.), a public entity is not liable “[e]xcept as otherwise provided by statute.” (Gov. Code, § 815; see *Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932 [80 Cal. Rptr. 2d 811, 968 P.2d 522].) If the Legislature has not created a statutory basis for it, there is no government tort liability. (*Hoff*, at p. 932.)

(*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal.4th 1002, 1009.)

Because recovery against a public entity is based on statute, the complaint must set forth facts sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are inadequate. (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal. App. 3d 1, 5.) Facts supporting separate theories of liability must be stated separately. (*Nestle v. City of Santa Monica* (1972) 6 Cal. 3d 920, 939.) The plaintiff must also plead facts sufficient to show that the cause of action lies outside the scope of any applicable statutory immunity. (*Giannuzzi v. State of California* (1993) 17 Cal. App. 4th 462, 467; *Keyes v. Santa Clara Valley Water Dist.* (1982) 128 Cal. App. 3d 882, 886.)

Without citing a single statute that would make CSCDA liable, plaintiff’s allegations are insufficient. She mentions CSCDA only a handful of times in the FAC and none of the references clearly describes a theory of liability against CSCDA.

In her opposition to the demurrer, plaintiff appears to rely on a theory of vicarious liability for conduct of individuals, citing Government Code §815.2, which is part of the Government Claims Act and provides for liability in respondeat superior: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee” (Gov. Code, § 815.2, subd. (a).) The Government Claims Act defines “employee,” as used in section 815.2, to include the following: “an officer, judicial officer as defined in Section 327 of the Elections Code, employee, or servant, whether or not compensated,” but the section specifically excludes “an independent contractor.” (Gov. Code, § 810.2.)

None of the above argument is reflected in the allegations of the FAC. Plaintiff has failed to plead “injury proximately caused by” a CSCDA “employee.” Any agency allegations relate to other individuals and entities. (See, e.g., FAC ¶132.) Even if plaintiff had alleged such relationship, several provisions in the Government Code would appear to provide CSCDA with immunity. These include Government Code section 818.8, related to immunity for injuries caused by a public entity’s employee’s negligent and intentional misrepresentations, and Government Code section 860.2, related to immunity for injuries caused by collection of a tax.

Accordingly, the demurrer must be sustained to all causes of action for failure to state sufficient facts to constitute a cause of action.

C. UCL (Sixth C/A)

CSCDA argues it is not subject to liability under the Unfair Competition Law (Bus. & Prof. Code § 17200 et seq.) and cites several relevant authorities holding that government entities are not “persons” as described in that statutory scheme. (See, e.g., *People for Ethical Treatment of Animals, Inc. v. California Milk Producers Advisory Bd.* (2005) 125 Cal.App.4th 871, 875 [“public entities, including CMAB, are not “persons” who are subject to suit under the UCL”].) Plaintiff responds that

vicarious liability is alleged so the demurrer should be overruled. This position lacks merit. The demurrer to the sixth cause of action is sustained.

D. CRLA (Seventh C/A, wrongly titled as a UCL claim)

The CSCDA demurs to the seventh cause of action for violation of the Consumer Legal Remedies Act (“CLRA”). Though the demurer does not cite any authority specifically holding that the CRLA does not apply to public entities, it reasons (and cites authority for the position) that, absent specific statutory language imposing liability, a statutory scheme does not, by default impose liability on government entities. Plaintiff fails to adequately refute the principle. Accordingly, the demurrer to the seventh cause of action is sustained.

**3. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.**

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference trails the hearings on the demurrers and motions to strike for Lines 8-11. Counsel are ordered to appear via Zoom for the CMC, unless Lines 8-11 are uncontested. If Lines 8-10 are uncontested, then the CMC shall be continued to June 5, 2026 at 8:30 a.m. in Dept. 16.

Law & Motion

**4. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY
COMPANY VS. MATT DELIMA**

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS OF DEFENDANT
KNM CLAYTON, LLC AND FOR MONETARY SANCTIONS AGAINST DEFENDANT KNM CLAYTON, LLC IN
THE AMOUNT OF \$885.00**

FILED BY: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Plaintiff and Cross-Defendant Clayton Valley Shopping Center LLC (“Plaintiff”) Motion to Compel Production of Documents from Defendant and Cross-Complainant KNM Clayton LLC (“Defendant” or “KNM”) dba “Kick N Mule” and for sanctions in the amount of \$885.00 is **granted**.

Background

In this case, the underlying action arises out of a commercial lease between the parties. Plaintiff sued for breach of the lease and guaranty agreements when the Defendants allegedly breached said agreements by abandoning the premises and by failing to pay the charges due thereunder. The Defendants filed a cross-complaint alleging that the plaintiff breached the lease which caused them damage.

Plaintiff’s moving papers claim that Plaintiff served deposition notices to Defendant KNM and Defendant Matt Delima and Jason Haugen for March 24-26, 2025. The deposition notice was

accompanied by a Request of Production of Documents No. 20 that requested “Each and every WRITING which evidences, refers to, pertains to, tends to prove or disprove the factual basis of the deponent’s allegation, as set forth in its CROSS-COMPLAINT, that it sustained damage as a result of plaintiff’s breach of the LEASE.”

Plaintiff took the deposition of Matt Delima on March 24, 2026. Mr. Delima testified that he prepared a binder of documents responsive to Defendant’s Request for Production of Documents, which he provided to Mr. Haugen, who would be deposed on March 26, 2026. No documents were produced on March 24, 2026.

On March 26, 2026, Plaintiff’s took the deposition of Mr. Haugen. However, Mr. Haugen did not produce documents and did not bring a binder. Plaintiff’s Counsel met and conferred with Defendant’s Counsel regarding the document request. Plaintiff claims that his inquiry went unanswered.

On June 24, 2025, Plaintiff filed a Motion to Compel Production of Documents from Defendant and for sanctions in the amount of \$885.00. The Motion is supported by a Notice, Memorandum of Points and Authorities, Declaration of Counsel Ernie Zachary Park.

On October 1, 2025, Defendant’s counsel, Frank Presto III, provided a declaration and Memorandum of Points and Authorities in opposition of the Motion to Compel Production of Documents. Counsel represented that Defendant was able to recreate the documents and serve them no later than November 4, 2025. In Plaintiff’s reply brief filed November 21, 2025, Counsel represented that only ten (10) pages of documents (not a binder) were e-mail to him by Defendant’s counsel in support of Defendant’s claim. No other documents were provided.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court’s decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature

intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Where a party has failed to produce documents duly noticed in a notice of deposition, the aggrieved party may bring a motion to compel the same. CCP § 2025.450(a). If a motion under subdivision (a) is granted, the court **shall** impose a monetary sanction ...in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2025.450(g)(1).

Here, the Court finds that Plaintiffs' notice of deposition and the accompanying request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. The Court finds that Defendants Counsel did not object to the request for production of documents and had represented that his clients would produce the documents. The records confirms that the parties had met and conferred before this motion was brought. The record also confirms that Defendants did not produce the binder of documents that supported their cross-complaint for damages, but only produced ten pages, with some invoices and checks.

While the production of documents appears to be partially moot, it took a motion for Defendants to comply with the original request that was served on January 11, 2025. Under these circumstances, the Court finds that Defendants is subject to sanctions for failing to produce the documents when requested at the deposition and acted without substantial justification.

Ruling

1. Plaintiff and Cross-Defendant Clayton Valley Shopping Center LLC ("Plaintiff") Motion to Compel Production of Documents from Defendant and Cross-Complainant KNM Clayton LLC ("Defendant" or "KNM") dba "Kick N Mule" and for sanctions in the amount of \$885.00 is **granted**.
2. Defendant shall produce all documents that support their claim for damages as set forth in their cross-complaint no later than ten (10) days from the date of this order, with the exception of those already produced. Further violations or non-compliance with this order may subject Defendant to issue and/or terminating sanctions.
3. Sanctions in the amount of \$885.00 shall be paid by the Defendant to Plaintiff's Counsel no later than ten (10) days from the date of this order.
4. Plaintiff's counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than five (5) days from the date of the hearing.

5. 9:00 AM CASE NUMBER: C23-00639

CASE NAME: 4740 APPIAN WAY HOMEOWNERS ASSOCIATION VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CHANG, HOUY CHYUN

TENTATIVE RULING:

This matter is off calendar and this hearing is vacated. Demurring party, Defendant Huoy Chyun Chang, was dismissed from this case without prejudice on December 12, 2025. No appearance is required at the hearing on February 18, 2026.

6. 9:00 AM CASE NUMBER: C23-02578

CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE

*HEARING ON MOTION IN RE: FOR SANCTIONS (PER EX PARTE ORDER GRANTED/FILED 8/25/25)

FILED BY: HAMMOND, DAVID

TENTATIVE RULING:

Summary

Plaintiff David Hammon's Motion for Sanctions for fees and costs in the amount of \$59,391.84 and costs in the amount of \$223.84 against Defendant Tony Geisler ("Defendant" or "Geisler") and his counsel, Dominic Signorotti, is **denied** without prejudice.

Background

On September 19, 2025, Plaintiff David Hammon filed a Motion for Sanctions pursuant to Cal. Code of Civ. Proc § 128.5 against Defendant Tony Geisler or his counsel, Dominic Signorotti, or both of them jointly, in the total amount of \$59,391.84, reflecting the total of the attorney fees (\$59,168.00) and costs (\$223.84) incurred by Plaintiff thus far as a result of Geisler's and Signorotti's sanctionable conduct. The motion is supported by a Memorandum of Points and Authorities, Notice, and a Declarations prepared by Counsel Kevin R. Brodehl and Daniel J. Zarchy. The motion, in essence, claims that Defendant Geisler had engaged in bad faith conduct and filed a legally frivolous answer.

On February 3, 2026, in an opposition filed by Defendant Geisler through Counsel Signorotti, Geisler asserts that Defendant's actions and intervention did not amount to bad faith, but in recognition of a disputed issues of fact that related to whether the public easement and unperfected dedication for hiking and riding purposes could be legally interpreted as encompassing bicycle riding or whether bicycle riding is a permissible change in the use of the easement because that use was within the contemplation of the offeror when the offer of dedication and easement were initially conveyed. (Citing to the ruling denying the Intervenor's Motion for Summary Adjudication in the 2017 Action, and the formal Order filed February 24, 2022 adopting that tentative ruling.) Defendant further claims that Hammond's Complaint names "all persons known and unknown" pursuant to CCP § 762.020, which is sufficient to permit him to file an answer.

Accordingly, Geisler claims that he is are entitled to all the same procedural rights and treatment as any other defendant in the action. In ruling on Hammond's demurrer and motion to strike the Answer, the Court granted Mr. Geisler leave to amend to either file a motion to intervene in the action or allege his basis for filing as a "person unknown" or a "Doe" defendant. Defendant Geisler claims that the Court's ruling in sustaining the demurrer with leave suggests that the Answer was not

frivolous.

In a reply brief filed on February 9, 2025, Plaintiff further asserts that Geisler's legal arguments lack merit, as they fail to address the substantive issue of whether he had initial standing to assert a quiet title claim. Other arguments are included in Plaintiff's reply brief that the Court considered.

Analyses

The Court focuses its analyses in this matter on the elements of Cal. Code of Civ. Proc. § 128.5, which states, in relevant part:

(a) A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. This section also applies to judicial arbitration proceedings under Chapter 2.5 (commencing with Section 1141.10) of Title 3 of Part 3.

(b) For purposes of this section:

(1) "Actions or tactics" include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. The mere filing of a complaint without service thereof on an opposing party does not constitute "actions or tactics" for purposes of this section.

(2) "Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party.

Here, Plaintiff claims that Defendant's filing and service of an Answer was done in bad faith, was frivolous, or solely intended to cause unnecessary delay. (Code Civ. Proc. §128.5(a); §128.5(b)(1).) Plaintiff's contention is premised on the theory that Geisler did not have an interest in title to the subject property and, thus, did not have standing to prosecute or defend a quiet title action. Plaintiff argues that "well-settled California law that a party must have an interest in title to the subject property to have standing to prosecute or defend a quiet title action. (Code Civ. Proc. §762.060(a); *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 220-221 [quiet title claim is "not maintainable" against a defendant with no "adverse claims to the title of the plaintiff"]; *Orcilla v. Big Sur, Inc.* (2016) 244 Cal.App.4th 982, 1009-1010 [quiet title claim is "defective" against a defendant with "no adverse claims to title"]; *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 802-803 [same].)

Plaintiff further asserts that his quiet title claim must be alleged against Defendant Sipos as the sole owner of the Burdened Property containing the Easement and "All Persons Unknown" claiming an interest in title to the Burdened Property adverse to the Easement. (Code Civ. Proc. §762.060(a) [plaintiff may name unknown persons claiming an interest "adverse to plaintiff's title"].) Here, Plaintiff asserts that Geisler's Answer claims no interest in title to the Burdened Property despite the requirement to do so. (Code Civ. Proc. §761.030(a)(1)). As described above, the Court in the 2017 Action has already ruled on Geisler's foundational standing deficiency in a Quiet Title claim involving the Easement. (Brodehl Decl., Exh. A.) Plaintiff contends that this Order has issue preclusive effect. (*Border Business Park, Inc.*, 142 Cal.App.4th at 1561-1566.) Plaintiff asserts that Geisler's counsel

Signorotti knows this – he represents Geisler and the other Intervenor in the 2017 Action.

In opposing this motion, Defendant contends that he has asserted a proper claim, stating that plain reading of Cal. Code of Civ. Proc § 762.020 . Indeed, Geisler filed an Answer as one of these persons as he claims an interest in the easement that Hammond is attempting to create. CCP § 762.070 provides that “[a] person named and served as an unknown defendant has the same rights as are provided by law in cases of all other defendants named and served, and the action shall proceed against unknown defendants in the same manner as against other defendants named and served, and with the same effect. Although he does not address the specific underlying issue of whether he has standing, he argues that in granting him leave to amend his Answer, the Court has found that his response was not in bad faith under Cal. Code of Civ. Proc § 128.5.

In considering the application of Section 128.5, the Court focuses primarily on whether Defendant’s actions or tactics in filing an answer, and other past actions, was “totally and completely without merit or for the sole purpose of harassing an opposing party.”

“Whether an action is frivolous is governed by an objective standard: Any reasonable attorney would agree that it is totally and completely without merit. But there must also be a showing of an improper purpose, i.e., subjective bad faith on the part of the attorney or party to be sanctioned. *In re Marriage of Reese & Guy* (1999), 73 Cal. App. 4th 1214. In *Dolan v. Buena Engineers, Inc.* (1994), 24 Cal. App. 4th 1500, 1505-1506 the court held that under CCP § 128.5 (bad faith actions or tactics that are frivolous or intended to cause delay), subjective bad faith is a prerequisite to an award of sanctions. There must be not only a showing of a meritless or frivolous action or tactic, but also a showing of bad faith in taking the action or tactic. Although the Legislature intended to broaden the power of trial courts to impose monetary sanctions for “tactics or actions not based on good faith which are frivolous or which cause unnecessary delay,” when it enacted CCP § 128.5, in 1981, it did not intend, however, to chill the valid assertion of a litigant’s rights. For this reason, sanctions should not be imposed except in the clearest of cases. *Luke v. Baldwin-United Corp.* (1985), 167 Cal. App. 3d 664, 668, which states that, “Even after defining frivolous the court cautioned, “. . . any definition must be read so as to avoid a serious chilling effect on the assertion of litigants' rights . . .” and therefore “the power to punish attorneys . . . should be used most sparingly to deter only the most egregious conduct.”

Applying the foregoing standards here, the Court is unconvinced that Plaintiff meets the objective and subjective standards which are required to establish that Defendant’s answer was filed in bad faith. Defendant claims a colorable argument in statutory interpretation that permits him to file an answer on behalf of “all persons known and unknown” pursuant to CCP § 762.020. While Defendant’s argument does not address the issue of whether Geisler had an interest in title to the subject property, which apparently he does not, the Court cannot conclude that his answer, alone, under Section 762.020 is frivolous within the meaning of Section 128.5.

Ruling

Based on the foregoing analyses, the Court finds that Defendant did not commit frivolous actions in this case. The standards for finding frivolity are defined in case law. Here, Defendant did not commit frivolous activity. As such, Plaintiff’s Motion for Sanctions and Fees is **denied** without prejudice.

Defendant's counsel is ordered to prepare a proposed order conforming to the tentative ruling, attaching the tentative ruling, no later than five (5) days from the date of this hearing.

7. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

***HEARING ON MOTION IN RE: FOR LEAVE TO AMEND SECOND AMENDED COMPLAINT TO FILE**

THIRD AMENDED COMPLAINT

FILED BY: COLEMAN, KAREN

TENTATIVE RULING:

Plaintiff Karen Coleman's Motion for Leave to File a Third Amended Complaint is **denied**. The Court sustained Defendant's Demurrer and granted Defendant's Motion to Strike the Second Amended Complaint on January 23, 2026. Plaintiff in *propria persona* filed a self-styled "Notice of Timely Filing Third Amended Complaint on February 2, 2026", which is late. Cal. Code of Civ. Proc. § 1005(b) requires service of this Motion no later than 16 court days before the hearing. Sixteen court days before February 18, 2026 is January 23, 2026. Plaintiff's filing is 10 days late.

Furthermore, Plaintiff's Motion contains several procedural irregularities. For example, Plaintiff's motion fails to comply with the Notice Requirements, did not to seek leave to amend her complaint, and fails to provide a Memorandum of Points and Authorities. Plaintiff did not file a Proof of Service form indicating that Defendants have been served. Plaintiff also does not include a proposed Copy of a Third Amended Complaint. These procedural irregularities do not provide Defendants with due process, in that there is no record that they are provided with timely notice an opportunity to be heard. As such, this Motion fails.

The Court has admonished Plaintiff that she is required to follow Court Rules and the Rules of Civil Procedure, even though she represents herself. The Court has also advised Plaintiff to seek assistance of Counsel or the resources of the law library so that she could properly prepare and serve motions in according to the rules. She has not complied with these admonitions. Unfortunately, the Court must **deny** the relief she requested by this Motion. Plaintiff's Motion is **denied**.

8. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT FILED BY DEFENDANT

UNIVERSAL PROTECTION SERVICE, LP

FILED BY: UNIVERSAL PROTECTION SERVICE, LP

TENTATIVE RULING:

Before the Court is Defendant Universal Protection Service, LP's Demurrer to Plaintiffs' First Amended Complaint. Universal Protection Service, LP is doing business as Allied Universal Security Services.

Defendant Universal Protection Service, LP's Demurrer **sustained without leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of

February 10, 2024, involving Plaintiffs' son – Christopher Cannedy. At that time, Andres Hernandez was employed by Defendant BJ's Restaurant, located in Brentwood, California. (¶ 6.) After his shift, Mr. Hernandez engaged in heavy drinking of alcohol behind the restaurant with other BJ's employees. (¶ 7.) He and his fellow employees drank for several hours. (*Ibid.*)

Defendant Allied provided security to the Beautiful Streets of Brentwood Shopping Center ("Mall") wherein the BJ's restaurant was located. (¶ 13.) Public intoxication is a misdemeanor. (*Ibid.*) The drinking behind the BJ's restaurant was a nearly nightly occurrence. (*Ibid.*) It is alleged that Allied should have been aware of this practice but took no steps to interrupt or prohibit the activity. (*Ibid.*)

On the morning of February 10, Mr. Hernandez left the BJ's restaurant parking lot with a blood alcohol level of 0.165%. (¶ 14.) He proceeded to enter State Route 4 going the wrong way and collided head on with Christopher Cannedy. (*Ibid.*) Both drivers were killed in the accident. (*Ibid.*)

Plaintiffs filed their complaint on October 11, 2024. Defendant Universal filed a demurrer to the Complaint, which was sustained with leave to amend. Thereafter, the Plaintiffs filed the operative First Amended Complaint on July 18, 2025. The FAC alleged three causes of action against BJ's: (1) Respondeat Superior; (2) Negligent Hiring/Supervision; and (3) Unfair Business Practices – B&P 17200 et seq. It alleges a single cause of action against Universal: (4) Aiding and Abetting Unfair Business Practices.

BJ's filed a demurrer to the FAC which is heard concurrently with this matter – see line 10.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Analysis

As outlined in full at line 10 of these Tentative Rulings, the Court sustained BJ's demurrer to the third cause of action for Unfair Business Practices **without** leave to amend.

It is well established that "there can be no aiding and abetting liability absent the commission of an underlying tort." (*Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 343 fn. 7 citation omitted.) As the Court found the FAC failed to state a cause of action for Unfair Business Practices, there cannot be a cause of action for aiding and abetting Unfair Business Practices.

Conclusion

As such, Defendant Universal's demurrer to the fourth cause of action is **sustained without leave to amend**.

9. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' FIRST AMENDED COMPLAINT FILED BY
DEFENDANT UNIVERSAL PROTECTION SERVICE, LP
FILED BY: UNIVERSAL PROTECTION SERVICE, LP
TENTATIVE RULING:

Denied as moot. See line 8.

10. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

Before the Court is Defendant BJ's Restaurant & Brewhouse, Inc.'s Demurrer to Plaintiffs' First Amended Complaint.

Defendant BJ's Demurrer is **sustained with partial leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of February 10, 2024, involving Plaintiffs' son – Christopher Cannedy. At that time, Andres Hernandez was employed by Defendant BJ's Restaurant, located in Brentwood, California. (¶ 6.) After his shift, Mr. Hernandez engaged in heavy drinking of alcohol behind the restaurant with other BJ's employees. (¶ 7.) He and his fellow employees drank for several hours. (*Ibid.*)

"Miguel," a manager of BJ's, had a policy of permitting employees to drink during their shifts and to drink for up to 30-minutes after their shifts behind the restaurant. (¶ 8.) The 30-minute rule was not enforced. (*Ibid.*) The location of the drinking was such that it would be readily observable by anyone visiting the restaurant, including any corporate representative or officer visiting the restaurant. (¶ 9.) BJ's had a corporate policy that recognized the risks of permitting employees to drink at work or to drink in excess. (¶ 10.)

Defendant Allied provided security to the Beautiful Streets of Brentwood Shopping Center ("Mall") wherein the BJ's restaurant was located. (¶ 13.) Public intoxication is a misdemeanor. (*Ibid.*) The drinking behind the BJ's restaurant was a nearly nightly occurrence. (*Ibid.*) It is alleged that Allied should have been aware of this practice but took no steps to interrupt or prohibit the activity. (*Ibid.*)

On the morning of February 10, Mr. Hernandez left the BJ's restaurant parking lot with a blood alcohol level of 0.165%. (¶ 14.) He proceeded to enter State Route 4 going the wrong way and collided head on with Christopher Cannedy. (*Ibid.*) Both drivers were killed in the accident. (*Ibid.*)

Plaintiffs filed their complaint on October 11, 2024. Defendant Universal filed a demurrer to the Complaint, which was sustained with leave to amend. Thereafter, the Plaintiffs filed the operative First Amended Complaint on July 18, 2025. The FAC alleged three causes of action against BJ's: (1) Respondeat Superior; (2) Negligent Hiring/Supervision; and (3) Unfair Business Practices – B&P 17200 et seq.

BJ's demurrers to each of the three causes of action.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Analysis

Respondeat Superior

"Under the theory of respondeat superior, employers are vicariously liable for tortious acts committed by employees during the course and scope of their employment." (*Lobo v. Tamco* (2010) 182 Cal.App.4th 297, 301.) Respondeat superior "liability attaches if the activities 'that cause[d] the employee to become an instrumentality of danger to others,' were undertaken with the employer's permission and were of some benefit to the employer or, in the absence of proof of benefit, the activities constituted a customary incident of employment." (*Purton v. Marriott Internat., Inc.* (2013) 218 Cal.App.4th 499, 509.) "Employee social and recreational activity on the company premises, endorsed with the express or implied permission of the employers, falls within the course of employment if the 'activity was conceivably of some benefit to the employer....'" (*McCarty v. Workman's Comp. Appeals Bd.* (1974) 12 Cal.3d 677, 682.)

The FAC alleges that Mr. Hernandez concluded his shift on February 10, 2024, and left the premises of BJ's restaurant. (¶ 7.) He then met other BJ's employees near the dumpsters, which were "close to the Restaurant," and participated in drinking alcoholic beverages for several hours before driving away and getting into the accident at issue. (*Ibid.*) None of the above activity is alleged to have occurred while Mr. Hernandez was 'on the clock' or on BJ's premises.

As noted above, Mr. Hernandez was off work for several hours before driving home and getting into the subject accident. Under the so-called 'going and coming rule' employers are "generally exempt from liability for tortious acts committed by employees while on their way to and from work because

employees are said to be outside of the course and scope of employment during their daily commute.” (*Moradi v. Marsh USA, Inc.* (2013) 219 Cal.App.4th 886, 894.) “The ‘going and coming’ rule is sometimes ascribed to the theory that the employment relationship is ‘suspended’ from the time the employee leaves [the workplace] until he returns ... or that in commuting he is not rendering service to his employer.” (*Ibid.* citation omitted.)

Plaintiffs argue that BJ’s had an ‘unofficial policy’ which permitted employees to drink during their shifts and for up to 30 minutes afterwards at the dumpsters. This ‘unofficial policy’ was meant to build employee camaraderie, showing employees trust, and improving employee morale. Thus, Plaintiffs argue, even though the drinking and the driving occurred off-the-clock and not on BJ’s property, it is still considered to be during the ‘course of employment.’

Plaintiff cites *Childers v. Shasta Livestock Auction Yard* (1987) 190 Cal.App.3d 792, which notes that several California cases have allowed nonemployee third parties to recover from employers for tortious conduct of employees, where the tortious conduct was a foreseeable risk of the employee’s consumption of alcohol occurring after ordinary working hours but within the scope of employment. (*Id.* at 803 citations omitted.) Plaintiff provides no discussion or analysis of *Childers* or any of the cases cited therein.

Every memorandum of points and authorities “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and **a discussion of the statutes, cases, and textbooks cited in support of the position advanced.**” (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the “trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.) It is the Plaintiffs’ counsel’s job to explain why the cases they cite are applicable to the instant matter. Merely citing a case without discussion does not aid the Court in its analysis. *Childers* and the cases cited therein are distinguishable from the current matter.

In *Childers*, the Yard’s foreman gave employee Smith the keys to the yard (as Smith would be in charge the next day), and told him to ‘go have a beer,’ which Smith knew to mean to get the beer from the corporate office. (*Id.* at 799.) Smith returned to the Yard and got some six packs of beer from the corporate office and went outside. There, he met employee Abbott who was off work. They both sat and drank the beer, then went into the office to continue drinking hard alcohol with a customer. Several hours later, Abbott drove off to feed his horses, drove off the road, and died.

The court found that the evidence showed the Abbott’s consumption of alcohol on the night of the accident could be deemed to be within the “test of scope of employment, i.e., that the activity was [1] undertaken with Shasta’s permission, [2] was of benefit to Shasta, and [3] was a customary incident of Abbott’s employment.” (*Id.* at 806.) As the court explained:

Yard foreman John Suther’s entrustment of the keys to the auction yard premises, together with his instructions to “Go get a beer,” were sufficient to grant to plaintiff and Smith agency authority to obtain alcohol from the employer’s locked premises. [citations] Evidence on the motion showed Abbott consumed alcohol with the permission of plaintiff and Smith on the evening in question, in line with what had

become a regular Friday night institution at the auction yard, when the three entered the office and drank Shasta's hard liquor with customer Roston. Abbott's consumption of liquor was therefore with the express and implied permission of Shasta and was a customary incident of her employment. Moreover, the evidence showed Shasta routinely furnished alcohol on the premises to customers and employees to encourage good customer relations. The fact that Abbott drank with Shasta's customer Roston is sufficient evidence of benefit to Shasta to defeat a motion for summary judgment. Finally, Abbott's subsequent negligent driving was a clearly foreseeable risk of her consumption of alcohol and, therefore, of Shasta's business enterprise.

Childers cites *Harris v. Trojan Fireworks Co.* (1981) 120 Cal.App.3d 157 in support. In *Harris*, defendant employee (Mr. Barajas) was alleged to have caused an automobile accident resulted in the death of one of the plaintiffs. The allegations were that Trojan Fireworks held a Christmas party for its employees "at which ... the employees were caused to attend and caused to imbibe large quantities of alcoholic beverages." (*Id.* at 159.) Mr. Barajas attended the party, became intoxicated, and attempted to drive home – resulting in the accident.

The Court discussed the 'coming and going rule' and the policies behind exceptions thereto, in finding that there "is sufficient connection between the employment or the employer's Christmas party and the employee's negligent act to justify holding the employer financially responsible for the injuries occasioned by the employee's accident." (*Id.* at 164.) The court noted that it could be inferred that the Christmas party was for the benefit of the employer – as it could be argued that the purpose of the party was to improve relations between the employees. (*Ibid.*)

The court noted that the employer intended Mr. Barajas to attend the holiday party by holding it during work hours and paying him to attend. (*Ibid.*) It also intended him to consume alcohol because it "furnished the alcoholic beverages" and it was alleged that the employer's agents "caused him to imbibe large quantities of alcoholic beverages." (*Ibid.*) Such allegations were deemed sufficient to, if proven, support a jury's determination that Mr. Barajas' attendance at the party and intoxication were within the scope of his employment. (*Id.* at 165.)

Purton v. Marriott Internat., Inc. 218 Cal.App.4th 499 is similar in its ruling. There, Marriott hosted an annual 'thank you' party for its employees. (*Id.* at 503.) While it did not require or pay its employees to attend, it did supply the alcohol for the event. (*Id.* at 503-04.) One of its employees (Mr. Landri) became intoxicated at the party and ultimately drove, causing an accident the killed an individual. The court discussed whether "a reasonable trier of fact could conclude that Landri was acting within the scope of his employment when he became intoxicated at the party." (*Id.* at 509.)

In support of its determination that the respondeat superior could apply the court highlighted the fact that the employer provided the alcohol at the party and sponsored and hosted the party. (*Id.* at 509-510.) It was also an annual event meant to celebrate the employees and celebrate team building. (*Id.*) The evidence showed that at the party "employees had Marriott's express permission to consume beer and wine," and that the implied 2 drink limit was not followed. (*Id.* at 510.) Evidence showed that Marriott managers consumed hard alcohol with employees at the party, thereby undermining

the claim that the party was limited to wine and beer. (*Ibid.*)

Thus, a trier of fact could find that the party and drinking of alcoholic beverages benefited the employer by improving employee morale and furthering employer-employee relations. (*Ibid.*)

A consistent theme from the above is that the employer was explicitly aware of the consumption of alcohol, provided the alcohol, and a purpose of the event at which the alcohol was provided had a work-related benefit – i.e. a business reason for the event. The events were also explicitly approved and/or thrown by the employer.

Here, there are no allegations that Mr. Hernandez was drinking during his shift. Nor are there any allegations that BJ's supplied the alcohol consumed by Mr. Hernandez and the others by the dumpsters after work hours ended. As for BJ's awareness of the drinking, it is alleged that a single manager ("Miguel") at the Brentwood location allowed the above 'unofficial policy.' There are no allegations that "Miguel" or any other BJ's management saw the drinking on the day in question. Nor are there allegations that "Miguel" was at work that day – such that he could have condoned the action. The get together at issue in this case is materially different from those outlined in the cases above. It was an informal meeting of employees **after** they were off the clock and was located **off the premises** of the employer. BJ's is not alleged to have supplied the alcohol nor to have instigated or explicitly approved of the 'informal' after work gathering.

Based on the above, Defendant BJ's demurrer to the first cause of action for respondeat superior is **sustained**.

Negligent Hiring/Supervision

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit." (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139.) "Liability for negligent hiring ... is based upon the reasoning that if an enterprise hires individuals with characteristics which might pose a danger **to customers or other employees**, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees." (*Ibid.* quoting *Mendoza v. City of Los Angeles* (1998) 66 Cal.App.4th 1333, 1339, emphasis added.) "The tort has developed in California factual settings where the plaintiff's injury **occurred in the workplace, or the contract between the plaintiff and the employee was generated by the employment relationship.**" (*Mendoza*, 66 Cal.App.4th at 1339-40, emphasis added.)

"Negligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.'" (*Phillips*, supra, 172 Cal.App.4th at 1139.) "The principal may be negligent because he has reason to know that the ... agent, because of his qualities, is likely to harm others in view of the work or instrumentalities entrusted to him. If the dangerous quality of the agent causes harm, the principal may be liable under the rule that one initiating conduct having an undue tendency to cause harm is liable therefor." (*Id.* at 1340.)

The FAC alleges that BJ's knew that Mr. Hernandez was a "binge drinker and accordingly unfit to work in a business that served alcohol and allowed its employees to consume alcohol." (¶ 22.) Also, BJ's should have known that Mr. Hernandez's "propensity for binge drinking posed an unreasonable risk

to others including motorists traveling in the vicinity of the Restaurant.” (¶ 23.)

As outlined above, the accident at issue occurred well off the premises of BJ’s restaurant many hours after Mr. Hernandez was off work. There are no allegations that Mr. Hernandez drank while at work, or that his job (which is not identified) put him in contact with alcohol. Nor are there any allegations that his job required him to drive a vehicle for BJ’s. Liability “requires some nexus or causal connection between the principal’s negligence in selecting or controlling an actor, the **actor’s employment or work**, and the harm suffered by the third party.” (*Phillips*, 172 Cal.App.4th at 1140 emphasis added.)

There are no allegations that the accident at issue occurred at BJ’s establishment, or that the accident “was generated by the employment relationship” between Mr. Hernandez and BJ’s. For example, if Mr. Hernandez was hired to be a delivery driver, the fact that he got into an automobile accident with decedent could potentially be tied back to his employment.

Based on the above, Defendant BJ’s demurrer to the second cause of action for negligent hiring/supervision is **sustained**.

Unfair Competition

California’s unfair competition law, as set forth in California Business and Professions Code §17200 *et seq.* (“UCL”) “broadly prohibits ‘an unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising.’” (*Puentes v. Wells Fargo Home Mortgage, Inc.* (2008) 160 Cal.App.4th 638, 644-45.) “By proscribing ‘any unlawful’ business practice, ‘section 17200 borrows violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable.” (*Id.* at 644, *quoting Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.)

“Historically, the UCL authorized any person acting for the interests of the general public to sue for relief notwithstanding any lack of injury or damages.” (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1359.) In 2004, Proposition 64 amended the UCL such that a “private person has standing to bring a UCL action only if he or she ‘has suffered injury in fact and has lost money or property as a result of the unfair competition.’” (*Ibid.*) “A private plaintiff must make a twofold showing: he or she must demonstrate injury in fact *and* a loss of money or property caused by unfair competition.” (*Ibid.*)

“Proposition 64 should be read in light of its apparent purposes, i.e., to eliminate standing for those who have not engaged in any business dealings with would-be defendants and thereby strip such unaffected parties of the ability to file “shakedown lawsuits,” while preserving for actual victims of deception and other acts of unfair competition the ability to sue and enjoin such practices.” (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 316.)

“To satisfy the narrower standing requirements imposed by Proposition 64, a party must now (1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., *economic injury*, and (2) show that that economic injury was the result of, i.e., *caused by*, the unfair business practice or false advertising that is the gravamen of the claim.” (*Id.* at 321-22.) Defendant argues that the FAC fails to allege either element.

The FAC alleges that “Plaintiffs have experienced overwhelming loss, pain, suffering, and deprivation of the comfort, support and society of their son Christopher.” (¶ 15, 20.) Defendants contend these alleged injuries are not ‘money or property’ and therefore do not give Plaintiffs standing for a UCL claim.

The Court agrees that there are no allegations supporting an economic injury related to this cause of action. Plaintiffs do not assert that they lost any money or property. While the loss of their son is tragic, it is not the type of injury that is addressed by the unfair competition law.

Even if the loss of their son could be considered an ‘economic injury,’ there are no allegations that show that the loss of their son was *caused by* the unfair business practice. Plaintiffs allege that BJ’s official policy of prohibiting alcohol consumption at work was deceptive in the context of BJ’s unofficial policy of permitting binge drinking immediately after employee shifts. There are no allegations that Plaintiffs were aware of either the public policy or the unofficial policy. In fact, there are no allegations that Plaintiffs had any interaction with BJ’s at all. There are no allegations that they ever visited BJ’s or saw any advertisements related to BJ’s. As such, there are no allegations connecting the alleged ‘misleading’ and ‘deceptive’ policies and Plaintiffs.

Plaintiffs do not address Defendant’s arguments in their opposition. It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to oppose these arguments, Plaintiffs concede the points.

Instead, Plaintiffs argue that *Cal. Med. Ass’n v. Aetna Health of Cal. Inc.* (2023) 532 P.3d 250 [14 Cal.5th 1075] supports their claim. They contend that *Cal. Med.* held that a plaintiff “possess standing as a result of diverting its own resources to combat unfair competitive practices.” (Opp. at 7:8-10.) They claim that this “holding is consistent with 17204 which requires only an injury in fact involving the loss of money or property as a result of the unfair competition,” and the FAC alleges that Plaintiffs have lost the ‘support’ of their son. (*Id.* at 7:10-15.) Plaintiffs fail to provide a pin cite as to where in the opinion this finding can be found, nor do they discuss how the case applies to the current situation.

Cal. Med. is distinguishable. There, the Court found that “the UCL’s standing requirements are satisfied when an organization, in furtherance of a bona fide, preexisting mission, incurs costs to respond to perceived unfair competition that threatens that mission, so long as those expenditures are independent of costs incurred in UCL litigation or preparations for such litigation.” (*Id.* at 1082.) There, when the CMA implemented a new policy, Aetna diverted resources in response to the policy. In other words, it spent additional money it would not have needed to in order to contend with the new policy.

Plaintiffs present no allegations that they spent any money as a result of BJ’s supposed ‘unofficial policy.’ As noted above, there are no allegations that Plaintiffs were even aware of the policy. As

such, there is no way for them to contend they were financially impacted by it. If they are claiming that their injury is the money spent on litigation related to the accident, *Cal. Med.* disavows this argument, noting that an “organization cannot, of course, manufacture the injury necessary to maintain a suit from its expenditure of resources on that very suit.” (*Id.* at 1099.) Instead, standing must arise “independent of costs incurred in UCL litigation or preparations for such litigation.” (*Id.* at 1082.)

Based on the above, the FAC fails to show that Plaintiffs have standing to bring a UCL claim and as such, Defendant’s demurrer to the third cause of action is **sustained**.

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

As with the last demurrer by Universal, Plaintiffs obliquely request leave to amend but fail to make any effort to show how they can amend to properly state a cause of action. A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer that ‘if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....’” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

However, if “the plaintiff has not had an opportunity to amend the complaint in response to a demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) The face of the FAC does not show that the respondeat superior and negligent hiring causes of action cannot be amended to properly state a claim.

Leave to amend, however, “should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 535 quoting *Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436 multiple citations omitted.) Such is the case with the unfair competition cause of action. The Court does not see how, and Plaintiffs have failed to make any showing that, they can properly state such a cause of action.

As this is the first challenge by BJ’s to the Plaintiffs’ allegations, the Court will grant Plaintiffs leave to amend as to the respondeat superior (first) and negligent hiring/supervision (second) causes of action. Leave to amend is denied as to the unfair competition (B&P § 17200 et seq.) cause of action.

Conclusion

Based on the above, Defendant’s demurrer is **sustained**. Plaintiffs are **granted leave to amend** as to the respondeat superior (first) and negligent hiring/supervision (second) causes of action. Leave to amend is **denied** as to the unfair competition (B&P § 17200 et seq.) cause of action.

11. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

Denied as moot. See line 10.

12. 9:00 AM CASE NUMBER: C25-00276
CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: SIINO, VIVIANE, PHD
TENTATIVE RULING:

Summary

Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") Motion for Attorney's fees & Costs against Plaintiff Christopher Sears Ph.D. ("Plaintiff" or "Sears") is **granted** as set forth herein.

Background

On September 16, 2026, Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") filed a Motion for Attorney's fees & Costs against Plaintiff Christopher Sears Ph.D. ("Plaintiff" or "Sears") in the amount of \$23,035 (fees) and \$258.22 (costs) based Cal. Code of Civ. Proc § 425.16(c)(1). The Motion is supported by a Notice, Memorandum of Points and Authorities, and the Declaration of Counsel Joshua Jachimowicz. This Motion is made on the grounds that Plaintiff is prevailing party in the Anti-SLAPP case on four of the five causes of action listed in Plaintiff's complaint. Defendant did not prevail in striking the second cause of action for libel. (See the Court's order granting Defendant's Special Motion to Strike on August 6, 2025.)

On February 3, 2026, Plaintiff filed an opposition, supported by his Declaration, requesting, essentially that the request for fees be either denied or reduced by fifty percent, on the grounds that Defendant did not prevail on the second cause of action and that the fees were excessive.

In reply, Defendant asserts that appointment is not proper under decisional authority, and that a review of the family law case was necessary to prepare for the Anti-SLAPP motion.

Analyses

Cal Code Civ Proc § 425.16(c) permits a prevailing defendant on a special motion to strike to recover that defendant's attorney's fees and costs. Under this provision, "any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (*Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131*. See also *Mann v. Old Time Quality Service, Inc.* (2006) 139 Cal.App4th 328, 338-339.

The decisional law interpreting Section 425.16 is illustrative. In *Dove Audio v. Rosenfeld, Meyer & Susman* (1996) 47 Cal. App. 4th 777, 785 the Court of Appeal held that a trial court did not abuse its discretion in awarding over \$27,000 in attorney fees to a law firm that prevailed in its special motion

to strike a recording company's defamation complaint as an anti-SLAPP suit (CCP §425.16). While the award was generous, the trial court did not exceed the bounds of reason, given that it included attorney fees and costs incurred in connection with the appeal, and CCP § 425.16 does not preclude recovery of appellate fees and costs."

The Court finds that it is not necessary that the prevailing party succeeds in striking all causes of action to recover attorney's fees. In *ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, which was cited by both parties, the court considered the issue of whether a defendant who partially prevails on an anti-SLAPP motion (where the court strikes some but not all of the challenged causes of action) is a "prevailing" defendant under section 425.16, subdivision (c). (*ComputerXpress*, at pp. 1016–1020.) In examining this question, the court rejected the plaintiffs' reliance on Civil Code section 1717 and instead focused on the statutory distinction between prevailing defendants and prevailing plaintiffs. (*ComputerXpress*, at pp. 1016–1018.) Unlike a prevailing defendant who is entitled as a matter of right to attorney fees, a prevailing plaintiff is entitled to attorney fees only if the anti-SLAPP motion was "frivolous or is solely intended to cause unnecessary delay." (§ 425.16, subd. (c).)

Finding this distinction reflected the Legislature's strong preference for awarding attorney fees to successful defendants, the court stated the phrase "prevailing party" **should be interpreted broadly to favor an award of attorney fees to a partially successful defendant.** (*ComputerXpress*, *supra*, at p. 1018.) The *ComputerXpress* court additionally relied on similar judicial interpretations of statutory schemes that likewise distinguish between prevailing plaintiffs and defendants in the fee-shifting analysis. (Id. at pp. 1018–1020; see *Hensley v. Eckerhart* (1983) 461 U.S. 424, 429; *Los Angeles Times v. Alameda Corridor Transportation Authority* (2001) 88 Cal.App.4th 1381, 1390–1392; see also *Wallace v. Consumers Cooperative of Berkeley, Inc.* (1985) 170 Cal. App. 3d 836, 846.

Based on these authorities, the *ComputerXpress* court held the defendants were prevailing parties because they were successful **in striking five of the nine challenged causes of action alleged in the complaint.** (*ComputerXpress*, *supra*, 93 Cal.App.4th at p. 1020.) The court stated the defendants' lack of success on a portion of the motion was relevant to the amount of fees awarded, and not on the issue of whether they were prevailing parties. (Id. at p. 1019.) The court thus remanded for the trial court to determine the attorney fees incurred for bringing the anti-SLAPP motion challenging the causes of action stricken from the complaint. (93 Cal.App.4th at pp. 1020–1021.)

Applied here, Defendant was successful in striking all but the second cause of action for libel. There is currently a hearing scheduled for Defendant's Demurrer on this second cause of action set for April 8, 2026 in Department 16. The Court finds that Plaintiff's argument that fees should be denied in their entirety is inconsistent with the foregoing authorities. Plaintiff's apportionment argument is unavailing.

Plaintiff also claims that the fees sought by Defendant should be reduced by fifty percent, as they are excessive and includes a review of unrelated family law case litigation. This argument, in part, has some merit and warrants further analyses. In reviewing Counsel's declaration, the Court conducted an independent review of the fees charged by Defendants, in light of the *Lodestar* factors, the amount of time spent by counsel and his office on the relevant litigation, and the 15 years of experience of Defendant's attorney. In reviewing these factors, the Court concludes that while the

amount of fees, \$23,035, is reasonable, some further reductions in fees are warranted.

Here, Defendant's counsel spent only 18.8 hours at \$650.00 per hour (\$12,200). Given the complexity of an Anti-SLAPP motion, this expenditure is valid. However, the Court finds that paralegals and law clerks could have achieved some additional efficiencies in the 61.8 hours devoted to reviewing the family law files and in preparing the initial drafts of the Anti-SLAPP motion. As such, the Court finds that 50, instead of 61.8, hours is reasonable. Accordingly, the amount of hours for legal assistance will be reduced from 61.8 hours to 50 hours. At \$175 per hour, the reasonable amount of fees for this work should be \$8,750.

Therefore, the Court finds that total fees (\$12,200 + \$8,750) in the amount of \$20,950 is reasonable. The Court also finds that costs incurred in the amount of \$258.22 is reasonable.

Ruling

1. Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") Motion for Attorney's fees & Costs against Plaintiff Christopher Sears PhD ("Plaintiff" or "Sears") is **granted** as set forth herein.
2. Plaintiff shall pay the amount of \$20,950 to Defendant's Counsel no later than thirty (30) days from the date of this order. Failure to pay this amount may result in the Court considering terminating sanctions or issue sanctions.
3. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching the tentative ruling, no later than five (5) days from the date of this hearing.

13. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a demurrer by General Motors, LLC to Plaintiff's complaint. Also before the Court is a motion to strike portions of the complaint. For the reasons set forth, hearing on the demurrer and motion to strike is continued to **9:00 a.m. on March 18, 2026** for the parties to meet and confer under Code of Civil Procedure sections 430.41(a) and 435.5(a). The parties shall meet and confer **by March 4, 2026**, and defendant shall file the required "meet and confer" declarations showing compliance with Code of Civil Procedure sections 430.41(a) and 435.5(a) **by March 9, 2026**.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone prior to filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. The statute requires the meet and confer to occur "at least 5 days before the date the responsive pleading is due." (Code Civ. Proc. § 430.41(b) [emphasis added].) The statute continues: "If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and

the demurring party shall not be subject to default during the period of the extension." (Code Civ. Proc. § 430.41(a)(2).)

Code of Civil Procedure section 435.5(a) contains similar provisions governing the parties' obligation to meet and confer prior to filing a motion to strike, with a similar provision for an extension of the filing deadline if in good faith the parties are unable to meet and confer at least five days prior to the filing deadline. (Code Civ. Proc. § 435.5(a)(2).)

In support of the demurrer and motion to strike, General Motors filed the Kay Declaration in which counsel declares that he attempted to meet and confer with counsel for Plaintiff on August 21, 2025, by emailing and calling him on that date, but he was unable to reach Plaintiff's counsel. (Kay Decl. ¶ 2.) General Motors filed its demurrer and motion to strike with the Kay Declaration at approximately 4:39 p.m. the same date, August 21, 2025. The attempt to call counsel the same date the demurrer and motion to strike were due, and then filing the pleading challenges when the party is unable to reach the other party that same day, violates both the letter and spirit of the meet and confer requirement.

The attempt to meet and confer was untimely as performed on the same date the demurrer and motion to strike were due, not at least five days prior to the due date. Despite the untimely meet and confer attempt, the demurring party could have obtained an automatic 30-day extension of time by filing a declaration as provided in Code of Civil Procedure sections 430.41(b) and 435.5(b) so that a meaningful meet and confer could take place before the pleadings were formally challenged.

The continuance of the hearing will allow the parties to conduct the meet and confer they failed to hold or were unable to hold in accordance with Code of Civil Procedure sections 430.41(a) and 435.5(a).

14. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT**
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:
Please see Line 13 above.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO FORM**
INTERROGATORIES (SET THREE) AS AGAINST PLAINTIFF
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
Summary

This tentative ruling applies to lines 15, 16 and 17, which are the three discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center ("Defendant") against Plaintiff Lynetta Westbrook ("Plaintiff") calendared for hearing on

February 18, 2026. Because no timely oppositions to each of these motions were filed with the Court, each of these motions are **granted** in their entirety.

Background

Defendant filed three discovery motions against Plaintiff to be heard on February 18, 2026 at 9:00 a.m. in Department 16 as follows:

1. Motion to Compel Plaintiffs' Responses to Form Interrogatories (Set Three)
2. Motion to Compel Further Responses to Special Interrogatories (Set Two)
3. Motion to Compel Responses to Special Interrogatories (Set Two)

These three motions were supported by Notice, Memoranda of Points and Authorities, Separate Statement (where required for the Motion to Compel Further Responses), Declarations of Counsel Valerie A. Kraml, and proposed orders lodged with the Court. The proofs of service for each motion evidence service of each motion on September 16, 2025 by e-mail to Plaintiff's Counsel of Record, Dawn M. Smith. No timely responses were received from Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is February 3, 2026. No timely opposition was filed. Defendant's counsel filed a Non-Receipt of Opposition to all three motions on February 10, 2025.

Plaintiff's Counsel, Dawn M. Smith, filed an untimely declaration on February 9, 2025, which is six days late, explaining that discovery responses were served on February 9, 2025, long after their initial deadlines. Accordingly, the Court does not consider the late-filed opposition.

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them."

Applied here, Plaintiff's Counsel made no attempt to seek leave to file her opposition late, and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. Counsel Smith's declaration does not include any statements that explain why discovery responses were not provided within the relevant discovery deadlines, and also does not demonstrate good cause for why she filed her declaration late. Counsel's California state bar number suggests that she has been in practice for more than 23 years. Counsel cannot blame inexperience for failing to file a timely opposition. Under *Rancho Mirage* and *Samaniego* cases, *supra*, the Court does not consider the late opposition and treats Defendant's Motion as if it were unopposed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent

to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Plaintiff’s failure to timely oppose Defendant’s Motions is deemed to be her consent to the granting of all three motions.

Ruling

1. Defendant’s Motion to Compel Plaintiffs’ Responses to Form Interrogatories (Set Three) is granted. Sanctions in the amount of \$1,522.95 are awarded to Defendant.
2. Motion to Compel Further Responses to Special Interrogatories (Set Two). Sanctions in the amount of \$3,022.95 are awarded to Defendant.
3. Motion to Compel Responses to Special Interrogatories (Set Two). Sanctions in the amount of \$3,035.90 are awarded to Defendant.
4. Plaintiff shall pay sanctions in the amount totaling \$7,581.80 to Defendant’s Counsel no later than ten (10) days from the date of this hearing.
5. The Court will execute the three proposed orders granting each motion lodged on September 16, 2026.

16. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET TWO) AS AGAINST PLAINTIFF**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 15, above.

17. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SPECIAL INTERROGATORIES (SET TWO) AS AGAINST PLAINTIFF**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 15, above.